

Smt. Gowthami K vs Sri. Shivaprasad B.R on 12 October, 2023

Author: S.G.Pandit

Bench: S.G.Pandit

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NC: 2023:KHC:37347
CP No. 344 of 2023

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 12TH DAY OF OCTOBER, 2023

BEFORE

THE HON'BLE MR JUSTICE S.G.PANDIT

CIVIL PETITION NO. 344 OF 2023

BETWEEN:

SMT. GOWTHAMI K
W/O SHIVAPRASAD B.R.
AGED ABOUT 26 YEARS,
HOUSE WIFE,
R/O SHANKARA MUTT ROAD,
RAGHAVENDRA COLONY,
MADHUGIRI TOWN-572132,
TUMKUR DISTRICT.

...PETITIONER

(BY SRI. ABHISHEK M. K., ADV.)

AND:

Digitally signed by A K
SRI. SHIVAPRASAD B.R
S/O RAJENDRA BABU B.
AGED ABOUT 36 YEARS,
RESIDENT OF NO.123,
SOWPARNIKA NILAYA,
1ST CROSS, GANDHINAGARA,
CHANDRIKA OPP: MAKAM SCHOOL,
Location: BENGALURU ROAD,
HIGH CHALLAKERE TOWN - 577522,
COURT OF CHITRADURGA DISTRICT.
KARNATAKA

...RESPONDENT

(BY SRI. MANJU BYRAL R., ADV.)

THIS PETITION IS FILED UNDER SECTION 24 OF CPC,
PRAYING TO (I) TRANSFER THE M.C.NO.43/2023 PENDING ON THE
FILE OF THE SENIOR CIVIL JUDGE AND JMFC, CHALLAKERE TO THE
FAMILY COURT AT MADHUGIRI AND (II) PASS SUCH OTHER ORDERS

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AS THIS COURT DEEMS FIT TO GRANT UNDER THE FACTS AND
CIRCUMSTANCES OF THE CASE, IN THE INTEREST OF JUSTICE.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE
COURT MADE THE FOLLOWING:

ORDER

The petitioner, wife of respondent is before this Court under Section 24 of CPC with a prayer to transfer M.C.No.43/2023 pending on the file of Senior Civil Judge and JMFC., to the Court of Senior Civil Judge and JMFC., Madhugiri for disposal.

2. Heard the learned counsel Sri.Abhishek.M.K., for petitioner/wife and learned counsel Sri.Manju Byral.R., for respondent/husband. Perused the civil petition papers.

3. Learned counsel for the petitioner/wife would submit that marriage of the petitioner and respondent was solemnized on 23.02.2017 at Challakere, Chitradurga District and from the marriage, they have on child aged about 4 years. It is submitted that petitioner/wife is not working and she has no income of her own and petitioner and her child are depending on her parents. Moreover, NC: 2023:KHC:37347 learned counsel would submit that the child is studying at Madhugiri at 'Chirec Public School' and in that regard, learned counsel for petitioner/wife invites attention of this Court to Annexure-B, study certificate. Learned counsel would submit that it would be difficult for petitioner/wife to travel from Madhugiri to Challakere along with her child to attend the proceedings. Thus, it is prayed for allowing the petition.

4. Per contra, learned counsel Sri.Manju Byral.R., for respondent/husband would submit that marriage of the petitioner and respondent has taken place at Challakere and as such respondent/husband has initiated proceedings at Challakere under Section 13(1)(ia)(ib) and (iii) of the Hindu Marriage Act, 1955 for dissolution of marriage. Learned counsel would submit that petitioner/wife could travel from Madhugiri to Challakere to attend the proceedings and further submits that respondent/husband is ready to bear the traveling expenses of the NC: 2023:KHC:37347 petitioner/wife. Thus, he prays for dismissal of the petition.

5. Having heard the learned counsel appearing for the parties and on perusal of the civil petition papers, I am of the view that petition is liable to be allowed.

6. In a petition filed under Section 24 of CPC for transfer of proceedings, more particularly, in matrimonial cases, the Court shall have to take note of the inconvenience or hardship that would be caused to the wife along with social and financial status of the parties.

7. Admittedly, petitioner/wife is not working and she has no income of her own. The child is with the petitioner/wife and as could be seen from Annexure-B - Study Certificate, the child is studying at 'Chirec Public School', Madhugiri. Therefore, it would be difficult for the petitioner/wife to travel from Madhugiri to Challakere to attend the proceedings. Though learned counsel for respondent/husband submitted that respondent/husband NC: 2023:KHC:37347 is ready to bear the traveling expenses, it would be difficult for petitioner/wife to travel along with her minor child to Challakere. If the prayer of the petitioner/wife is not allowed, petitioner/wife would suffer more inconvenience and hardship. Hence, the following:

ORDER

1) Civil Petition filed under Section 24 of CPC is allowed.

2) The proceedings in M.C.No.43/2023 pending on the file of the Senior Civil Judge and JMFC., Challakere is directed to be transferred to the Court of Senior Civil Judge and JMFC., Madhugiri for further consideration in accordance with law.

Sd/-

JUDGE NC CT:bms